

PLJ 2020 Lahore 230
[Multan Bench Multan]

Present: JAWAD HASSAN, J.

KHALID--Petitioner

versus

MEPCO, etc.--Respondents

W.P. No. 2770 of 2020, decided on 21.2.2020.

Constitution of Pakistan, 1973--

----Art. 199--Electricity bill--Representation--Electric Power company issued bill of month without considering that amount of arrears has already been paid--Copy of writ petition be remitted to respondent who will treat same as a representation and decide issue and correct bill under National electric power regulator authority (import of power) regulations, 2017--In meanwhile, No coercive measures shall be adopted against petitioner for recovery of alleged arrears. [Pp. 230 & 231] A & C

Constitution of Pakistan, 1973--

----Art. 199--Maintainability of writ petition--Court can take cognizance of matter where misuse or abuse of authority by public functionaries arises. [P. 230] B

2002 CLC 59 *ref.*

Mr. Muhammad Qadir Asif Toor, Advocate for Petitioner.

Date of hearing: 21.2.2020.

ORDER

Learned counsel for the Petitioner submits that the electricity bill for the month of January, 2020 ("the Bill") has been issued to the Petitioner by the Respondent No. 1, Multan Electric Power Company ("the MEPCO"), without considering the fact that the amount of arrears has already been paid by the Petitioner but the MEPCO has again added the same in the Bill without any justification.

2. On the question of maintainability of this petition, learned counsel submits that this Court can take cognizance of the matter where the misuse or abuse of authority by the public functionaries arises. In this regard, he has placed reliance on the judgment passed by a learned Division Bench of this Court in the case of Muhammad Zia versus Ch. Nazir Muhammad, Advocate and 4 others (2002 CLC 59). He, however, submits that the Petitioner would be satisfied if the matter be transmitted to the Respondent No. 3/Sub-Divisional Officer (E), MEPCO, Sub-Division Kabirwala, District Khanewal with a direction to decide the same in accordance with law, within a short span of time.

3. The request of the Petitioner, being reasonable, is allowed. Let a copy of this writ petition alongwith all the annexures be remitted to the Respondent No. 3 who will treat the same as a representation of the Petitioner and decide the issue in hand after providing proper hearing to the Petitioner, strictly in accordance with law, through a speaking order, expeditiously within a period of one week from the receipt of certified copy of this order. If claim of the Petitioner is found genuine then the Respondent/Authority concerned will make necessary amendment/correction in the Bill under the National Electric Power Regulatory Authority (Import of Power) Regulations, 2017 or any other law applicable, and also issue

revised bill, which the Petitioner will deposit within next two days. In the meanwhile, no coercive measures shall be adopted against the petitioner for recovery of the alleged arrears, till decision of his representation.

Disposed of.

(K.Q.B.) Petition disposed of